

C.C.R.B CASE CLOSING FORM

Investigator assigned:		Team:	CCRB#:	☒ Force ☒ Discourtesy
Pichardo		7	9704856	☒ Abuse ☐ O.L. ☐ Injury
Date of incident:	Time of incident:	Location of incident:	Pct. of occurrence:	Date S.O.L. Expires:
12/14/97	7:00 PM	19th Avenue and 65th Street and 62nd Precinct Station House, Brooklyn	62nd Precinct	6/14/99
Date reported:	Time reported:	To whom/where/how reported:		
12/16/97	11:03 AM	Complaint called into CCRB.		
Complainant:		Home address:		
§ 87(2)(b)		§ 87(2)(b)		
Victim(s):		Home address:		
same as above § 87(2)(b)		same as above § 87(2)(b)		
Witness(es):		Home address:		
§ 87(2)(b)		§ 87(2)(b)		
Subject officer(s) (include rank):	Shield:	Tax:	Command:	
SGT Vincent Vallelong	3297	896868	62nd Precinct	
PO Edward Mahoney	5398	899509	62nd Precinct	
PO Peter Miller	4238	902024	62nd Precinct	
PO Michael DiCecco	4047	903799	62nd Precinct	
PO Gina DiFranco	30119	903801	62nd Precinct	
PO John Walker	17404	907540	62nd Precinct	
PO Salim Karnaby	6585	907714	62nd Precinct	
Witness officer(s) (include rank):	Shield:	Tax:	Command:	
SGT Michael Incontrera	597	894075	62nd Precinct (currently assigned to Police Academy Management Training Section)	
PO Robert D'Amodio	20177	915547	62nd Precinct	
PO Dean Smimmo	28755	898551	62nd Precinct	
PO John Magnotti	20975	887897	62nd Precinct (currently assigned to Narcotics Corough Brooklyn South)	
PO Paul Zito	4632	905562	62nd Precinct	
PO Raymond Wittick	18015	905308	62nd Precinct (currently assigned to Northern Manhattan Initiative)	

Allegation(s) by letter:	Recommendation(s):
✓ A. ABUSE: PO Miller threatened to arrest § 87(2)(b) in violation of PG 110-01.	A. Exonerated
✓ B. DISCOURTESY: PO Miller told § 87(2)(b) to "shut the fuck up" in violation of PG 104-01.	B. Unfounded
✓ C. ABUSE: PO Miller threatened to arrest § 87(2)(b) in violation of PG 110-01.	C. Exonerated
✓ D. FORCE: PO Miller pointed his firearm at § 87(2)(b) in violation of PG 104-01.	D. Unfounded
✓ E. DISCOURTESY: PO Miller told § 87(2)(b) to "step the fuck away" in violation of PG 104-01.	E. Unfounded
✓ F. FORCE: PO Miller pushed/pulled § 87(2)(b) in violation of PG 104-01.	F. Exonerated
✓ G. FORCE: An unidentified officer pulled § 87(2)(b) from her vehicle in violation of PG 104-01.	G. MOS Unidentified
✓ H. FORCE: PO Miller repeated hit § 87(2)(b) in his head with handcuffs in violation of PG 104-01.	H. Unfounded
✓ I. FORCE: An unidentified officer beat § 87(2)(b) in violation of PG 104-01.	I. MOS Unid./Unfounded
✓ J. ABUSE: SGT Vallelong asked § 87(2)(b) "Why didn't you try to bite me before? I would have put your head through the fucking windshield," in violation of PG 104-01.	J. Unfounded
✓ K. FORCE: PO Walker beat § 87(2)(b) in violation of PG 104-01.	K. Unfounded
✓ L. FORCE: PO Mahoney beat § 87(2)(b) in violation of PG 104-01.	L. Unfounded
✓ M. FORCE: PO DiCecco beat § 87(2)(b) in violation of PG 104-01.	M. Unfounded
✓ N. FORCE: PO Karnaby beat § 87(2)(b) in violation of PG 104-01.	N. Unfounded
✓ O. ABUSE: An unidentified officer told § 87(2)(b) "You're lucky to have children or you'd be fucking dead or it'd be worse!" in violation of PG 104-01.	O. MOS Unid./Unfounded
✓ P. DISCOURTESY: PO DiFranco called § 87(2)(b) a "fat whore" and asked "What kind of mother are you?" in violation of PG 104-01.	P. Unsubstantiated
Q. ABUSE: PO DiFranco threatened to have § 87(2)(b) children taken away in violation of PG 104-01.	Q. Unsubstantiated
R. DISCOURTESY: PO DiFranco called § 87(2)(b) an "animal" in violation of PG 104-01.	R. Unsubstantiated

Summary of Complaint

Ms. § 87(2)(b) was initially reported this complaint to CCRB on December 16, 1997 via telephone. *See enclosures 2a-2d for original UF-245.* At this time, § 87(2)(b) stated that her husband, § 87(2)(b) was beaten with handcuffs and that an unidentified officer pointed his firearm at § 87(2)(b) head. Additionally, § 87(2)(b) reported that she and her husband were subject to various disparaging remarks.

§ 87(2)(b) was interviewed by Sgt. Magnus of IAB Group 54 on December 22, 1997 and provided the following account of the incident. *See enclosures 3a-3b for statement.* On December 14, 1997 § 87(2)(b) and her husband, § 87(2)(b) were involved in a motor vehicle accident with an Asian man. Police officers responded and prepared the motor vehicle accident report. § 87(2)(b) who was upset about the accident, began to yell at the Asian motorist. PO Miller told § 87(2)(b) to calm down or she would be arrested. § 87(2)(b) responded by telling PO Miller to go ahead and arrest her.

§ 87(2)(b) stated that she saw officers jump on her husband and hit him. One of the officers pointed his firearm at § 87(2)(b). § 87(2)(b) was then placed in handcuffs and transported to the station house in a marked police car. When she arrived at the station house, § 87(2)(b) observed that her husband was already inside the holding cell in handcuffs. § 87(2)(b) reported that she was verbally abused by a female member of the service by the name of "Gina." § 87(2)(b) was released at 9:40 PM and issued a Desk Appearance Ticket. § 87(2)(b) then went home and telephoned CCRB to file a complaint.

§ 87(2)(b) was interviewed at CCRB on January 30, 1998 and provided the following account of the incident. *See enclosures 4a-4e for statement.* On December 14, 1997 at approximately 6:30 PM, § 87(2)(b) and her husband were driving on 19th Avenue in Brooklyn and got into an accident with another vehicle while attempting to make a left turn onto 65th Street. § 87(2)(b) and her husband exited their vehicle and approached the other car involved in the accident. They attempted to speak with the other Asian man who was driving, however he did not appear to speak English. A few minutes later, an Asian female approached and served as an interpreter and the two parties began to exchange information.

A few minutes later, a marked police car arrived. The officer exited the radio motor patrol (RMP), approached the group, and instructed the operators to move their vehicles from the middle of the street. The officer explained that he was en route to an emergency and that other officers would respond shortly. The officer then drove away.

Some time later, another RMP arrived at the scene. Two uniformed officers – later determined to be PO Miller and PO Magnotti – exited and obtained statements from both motorists regarding the accident. The officer then obtained licenses and registrations from both parties and returned to their RMP to fill out the accident report. Shortly thereafter, § 87(2)(b) was called to the RMP and was given a card and instructed to call the precinct the next day to obtain the accident number. § 87(2)(b) then asked one of the officers – later determined to be PO Miller – who was at fault for the accident. PO Miller told her that she was at fault. § 87(2)(b) began to get upset and cry. She then approached the Asian man and began to speak with him, admittedly hysterical and crying. PO Miller then informed § 87(2)(b) that the officer had to arrest her. § 87(2)(b) responded, telling the officers to "do what they had to do," however § 87(2)(b) interceded and pleaded with the officers not to arrest his wife. § 87(2)(b) walked his wife to the front passenger's seat of their vehicle and continued to plead with the officer not to effect the arrest.

PO Miller then reached for § 87(2)(b) lapel and attempted to pull him away so that PO Miller and his partner could arrest § 87(2)(b). § 87(2)(b) pulled back away from the officers and PO Miller withdrew his firearm and pointed it at § 87(2)(b) head. § 87(2)(b) stated that she could see the barrel of PO Miller's gun touching her husband's forehead. PO Magnotti then pulled § 87(2)(b) from her vehicle and placed her in handcuffs. While § 87(2)(b) was being placed in handcuffs, she could see PO Miller striking § 87(2)(b) in the back of the head with his handcuffs.

At this time, three additional officers arrived to assist PO Miller and PO Magnotti. § 87(2)(b) was unsure as to where or how these officers were hitting her husband. Shortly thereafter, PO Miller pulled back and cried out that § 87(2)(b) had bit him. § 87(2)(b) could see blood dripping down one of PO Miller's arms. § 87(2)(b) turned to look at her husband and saw that he had been placed in handcuffs.

There were now numerous officers on the scene. § 87(2)(b) was escorted by two police officers to an RMP and sat in the back seat. § 87(2)(b) saw her husband being driven away at this time in another patrol car. § 87(2)(b) remained seated in the RMP for approximately five minutes and was then driven to the station house. § 87(2)(b) reported that the trip to the precinct lasted

approximately five minutes and that the officers stopped at all red lights. Upon arrival at the station house, § 87(2)(b) was presented at the desk and then taken to the bathroom where a female detective searched her. She was then placed in a holding cell adjacent to another cell, which held her husband.

While § 87(2)(b) was in the cell, a female officer, who was referred to as Gina by another officer, began to berate her and her husband. The female officer – later determined to be PO DiFranco – called § 87(2)(b) a “fat whore” and § 87(2)(b) “an animal.” PO DiFranco asked § 87(2)(b) “What kind of mother are you?” and threatened to have § 87(2)(b) children taken away with one phone call. PO DiFranco then removed § 87(2)(b) from her cell so that § 87(2)(b) could make a phone call. After placing the call to her aunt, § 87(2)(b) was returned to her cell. She then asked her husband what had happened and he told her that officers had beaten him behind the station house. § 87(2)(b) stated that her husband’s jacket was covered in dirt and that his face was bruised. § 87(2)(b) also told § 87(2)(b) that the two officers who transported him to the station house were professional and did not mistreat him in any manner.

At approximately 10:00 PM, § 87(2)(b) aunt, § 87(2)(b) arrived at the station house. § 87(2)(b) was fingerprinted, brought before the desk, issued a Desk Appearance Ticket (DAT), and released at approximately 10:30 PM.

Results of Investigation

Civilian Statements

§ 87(2)(b) telephoned the IAB Action Desk on December 20, 1997. *See enclosures 5a-5c for IAB Referral Log.* At this time § 87(2)(b) reported that he and his wife were involved in a motor vehicle accident and engaged in a verbal dispute with the other motorist. Police officers responded and told § 87(2)(b) to “shut the fuck up” and threatened to arrest her. § 87(2)(b) reported that he was taken behind the station house, where he was beaten and threatened with force.

§ 87(2)(b) was interviewed on December 22, 1997 by Sgt. Magnus of IAB Group 54 and provided the following account of the incident. *See enclosures 6a-6b for statement.* On December 14, 1997 § 87(2)(b) and his wife were involved in a motor vehicle accident. The police officers arrived and prepared an accident report. § 87(2)(b) grabbed his wife and placed her into their car when it became evident that the officers wanted to arrest her. PO Miller then continued to attempt to arrest § 87(2)(b) however § 87(2)(b) stood between his wife and the officer. § 87(2)(b) indicated that he would not move out of the way. PO Miller then pushed him out of the way and PO Miller’s partner pulled § 87(2)(b) from her vehicle. PO Miller then hit § 87(2)(b) who fell to the ground and rolled up into a ball. Several police officers then jumped on § 87(2)(b) and hit him repeatedly until he was handcuffed. One of the officers indicated that § 87(2)(b) had bit him, although § 87(2)(b) denied this. § 87(2)(b) was then transported to the precinct. Before being brought inside, four unidentified officers slapped and punched § 87(2)(b) in a carport alcove area. § 87(2)(b) was then brought before the desk officers and placed in a holding cell. § 87(2)(b) did not report the beating to the desk officer or request medical attention.

§ 87(2)(b) complaint to IAB was referred to CCRB and entered into the CCRB computer system on December 26, 1997. *See enclosures 7a-7b for UF-245.* This complaint was subsequently deleted from the system and incorporated into § 87(2)(b) original complaint.

§ 87(2)(b) was interviewed at CCRB on January 16, 1998 and provided the following account of the incident. *See enclosures 8a-8d for statement.* On December 14, 1998 at approximately 6:30 PM, § 87(2)(b) and his wife were driving on 19th Avenue. Upon reaching 65th Street, § 87(2)(b) attempted to make a left turn onto 65th Street when she got into an accident with a male Asian driving a

Toyota. Moments later, a female Asian in another vehicle stopped her car and went to call the police. § 87(2)(b) indicated that there were officers in the area due to another accident at 20th Avenue. One of these officers, possibly a sergeant, stopped at the scene of the accident involving the Goldsteins and the Asian motorist and asked if anyone was injured. The officer then asked the parties to move their vehicles to the side of the road and indicated that other officers would be responding.

Approximately fifteen minutes later, two officers – later determined to be PO Miller and PO Magnotti – arrived. These officers took information from the vehicle operators, examined the two automobiles, and returned to their RMP to prepare the accident report. From the RMP, the officers questioned first the Asian man and then § 87(2)(b). One of the officers told § 87(2)(b) that she was at fault for the accident. § 87(2)(b) then became upset. While § 87(2)(b) attempted to calm his wife down, PO Miller told § 87(2)(b) to “shut the fuck up” and threatened to arrest her. § 87(2)(b) then escorted § 87(2)(b) to their vehicle and sat her in the front passenger seat.

PO Miller and PO Magnotti exited their RMP and indicated that they were going to arrest § 87(2)(b). § 87(2)(b) pleaded with the officers not to arrest his wife, while he stood in front of his vehicle where § 87(2)(b) was seated. PO Miller told § 87(2)(b) to step away or he would be arrested as well. § 87(2)(b) stayed where he was and continued to plead with the officer. PO Miller removed his firearm and pointed it at § 87(2)(b) head from a distance of one and a half to two feet and told § 87(2)(b) to “step the fuck away.” PO Miller replaced his firearm and removed his handcuffs from his belt. PO Miller then approached § 87(2)(b) and placed his arms around him in an attempt to grab § 87(2)(b) and place her under arrest. In an attempt to subdue § 87(2)(b) PO Miller hit him approximately five times in the back of the head with the handcuffs. § 87(2)(b) fell to his knees and two additional officers approached in an attempt to assist PO Miller. § 87(2)(b) stated that these officers were involved in the struggle, however only PO Miller hit him. During the struggle, PO Miller yelled out that § 87(2)(b) bit him. § 87(2)(b) denied this and stated that PO Miller must have gotten his finger got in the handcuffs during the course of the struggle.

Moments later, many additional officers responded to the location. § 87(2)(b) reported that many of these officers asked him why he had bitten PO Miller. The first officer to have responded to the accident asked § 87(2)(b) “Why didn’t you try to bite me before? I would have put your head through the fucking windshield.” PO Miller was transported to the hospital and § 87(2)(b) was placed in the rear of an RMP. § 87(2)(b) was then transported to the station house. While en route, the transporting officers did not say anything to § 87(2)(b). Approximately two minutes later, § 87(2)(b) and the officers arrived at the station house and pulled into a carport area. One of the officers then pulled § 87(2)(b) from the RMP and four unidentified officers repeatedly kicked § 87(2)(b) in the stomach, legs, and buttocks for approximately thirty seconds. One of the officers slapped § 87(2)(b) in the face twice. One of the officers then picked § 87(2)(b) up and told him, “You’re lucky you have kids or you’d be fucking dead or it’d be worse!”

§ 87(2)(b) was then brought inside the precinct and presented at the desk. He was then placed into a holding cell. § 87(2)(b) was placed into a cell adjacent to his. § 87(2)(b) was released at approximately 9:00 PM with a DAT. § 87(2)(b) was transported to central booking at approximately 10:00 PM.

§ 87(2)(b) provided additional information regarding the incident on March 25, 1998. *See enclosure 9 for statement.* At this time § 87(2)(b) stated that while he stood in front of his car attempting to prevent his wife’s arrest, PO Miller holstered his firearm and then removed his handcuffs. PO Miller approached § 87(2)(b) and while facing § 87(2)(b) placed his arms behind § 87(2)(b) as if the officer were going to pull him away or place him in handcuffs. Instead, PO Miller hit § 87(2)(b) in the back of the head with the handcuffs repeatedly just above the base of the skull. One

of the officers then buckled § 87(2)(b) knees, causing him to fall to the ground. § 87(2)(b) believed that other officers began hitting him at this time. § 87(2)(b) did not specifically recall being hit, however his wife told him that was what she observed. § 87(2)(b) was then handcuffed, assisted to a standing position, and escorted to an RMP. There were many police officers at the scene at this time. One of these officers told § 87(2)(b) 'I'll put your head through a windshield, I'll break your teeth, try and bite me!' § 87(2)(b) stated that he did not resist the officers at any time.

§ 87(2)(b) was interviewed on March 25, 1998 at CCRB and provided the following account of the incident. *See enclosures 10a-10c for statement.* On December 14, 1997 at approximately 8:00 PM, § 87(2)(b) received a telephone call from § 87(2)(b) who informed her that she and her husband had been arrested. § 87(2)(b) asked § 87(2)(b) to come to the station house and she agreed. At approximately 9:30 PM, § 87(2)(b) arrived at the 62nd Precinct and indicated to the desk officer that she was the aunt of the two prisoners in custody. The desk officer briefly explained why § 87(2)(b) and § 87(2)(b) had been arrested. § 87(2)(b) asked to see the prisoners and was allowed to go back to the holding cell area. § 87(2)(b) and § 87(2)(b) explained what had happened. § 87(2)(b) returned to the desk and asked the officer what would happen to her two relatives.

Some time later, § 87(2)(b) was brought before the desk to complete some paperwork. As § 87(2)(b) and § 87(2)(b) prepared to leave, § 87(2)(b) called out to § 87(2)(b). The desk officer then escorted § 87(2)(b) to the cell area. § 87(2)(b) spoke with § 87(2)(b) briefly. At this time, § 87(2)(b) noticed a large bruise on the center of § 87(2)(b) forehead. § 87(2)(b) pointed out his dirty jacket and bloodstains below § 87(2)(b) neck. § 87(2)(b) stated that she did not notice the bruise when she first spoke with her nephew. § 87(2)(b) then left with § 87(2)(b) and went home.

Extensive attempts were made to contact the other motorist involved in the accident with Mr. and § 87(2)(b) including queries with the DMV computer system, Cole's Directories, contact calls to various numbers and a field trip. These attempts were all met with negative results. *See enclosures 78, 79a-79c, 80a-80b, and 81.*

Members of the Service Statements

Sgt. Vallelong was interviewed at CCRB on August 11, 1998 and provided the following account of the incident. *See enclosures 31a-31b for statement.* On December 14, 1998 Sgt. Vallelong was the patrol supervisor for the 62nd Precinct. At approximately 6:00 PM, Sgt. Vallelong received a radio call of a motor vehicle accident involving an RMP at 65th Street and Bay Parkway. While Sgt. Vallelong and his operator were en route to the accident, they encountered another motor vehicle accident at the intersection of 65th Street and 19th Avenue. Sgt. Vallelong and his operator stopped the RMP and called over the radio for another unit to respond and take the accident report. Sgt. Vallelong instructed the motorists to move their vehicles from the road. When the other unit arrived, Sgt. Vallelong and his operator continued on their way.

A short while later, an officer at 19th Avenue and 65th Street placed a call for assistance and Sgt. Vallelong and his operator returned to that location. Upon arrival, Sgt. Vallelong observed two prisoners in handcuffs. Other members of the service had already removed PO Miller, the injured officer, to the hospital in an RMP. Sgt. Vallelong observed that both prisoners were in normal physical condition. Sgt. Vallelong stated that he personally placed § 87(2)(b) into the back of an RMP, thereby allowing him an opportunity to accurately assess § 87(2)(b) physical condition. Sgt. Vallelong observed no injuries whatsoever.

Sgt. Vallelong returned to the station house to fill out paperwork in connection with the RMP accident. Sgt. Vallelong stated that he was in the vicinity of the holding cells and was able to observe both § 87(2)(b) and § 87(2)(b). Sgt. Vallelong did not note any change in § 87(2)(b) physical

condition. Sgt. Vallelong further stated that if § 87(2)(b) had complained to him of having been a victim of excessive force, which he did not, then the sergeant would have called an ambulance for the prisoner and made all of the proper notifications. Sgt. Vallelong did not hear any type of discourteous remark made towards either of the two prisoners at any time.

PO Miller was interviewed at CCRB on July 27, 1998 and provided the following account of the incident. *See enclosures 26a-26d for statement.* On December 14, 1997 PO Miller and his partner, PO Magnotti, were assigned to patrol sectors GH in the 62nd Precinct. At approximately 5:45 PM, PO Miller and his partner responded to a call placed by Sgt. Vallelong for officers to respond to 19th Avenue and 65th Street to take an accident report. When PO Miller and PO Magnotti arrived at the location, Sgt. Vallelong informed the officers of the version of events he had been told by the motorists. Sgt. Vallelong then left the location. PO Miller and his partner then spoke with Mr. and § 87(2)(b) and an Asian man, who had been the other motorist involved in the accident. The officers then returned to their RMP to fill out the accident report.

§ 87(2)(b) approached the RMP and asked PO Miller who had been at fault in the accident. PO Miller informed that usually the operator failing to yield, i.e. § 87(2)(b) would be considered to be at fault, however this decision would be made by the insurance companies. PO Miller indicated to § 87(2)(b) that he and his partner only wrote down the two accounts of the accident and had no role in the determination of fault. § 87(2)(b) tried to explain to PO Miller how the other motorist was at fault and then stated that "foreigners come to this country and don't know how to drive." PO Miller observed that § 87(2)(b) demeanor worsened during the course of the conversation and that she became increasingly agitated, yelling and clenching her fists. PO Miller tried to explain that the important thing was that neither § 87(2)(b) nor her husband were injured and that the insurance company would cover the damage, however this response did not seem to satisfy § 87(2)(b).

§ 87(2)(b) then walked over to the Asian motorist and began to yell and scream at him. The Asian man looked directly at PO Miller, seemingly asking for assistance. PO Miller observed that the Asian man did not speak a lot of English and that at least one family walking by had stopped to watch the occurrences. PO Miller called § 87(2)(b) back over to the RMP and told her that she would have to calm down. § 87(2)(b) continued to yell and PO Miller then informed her that if she did not calm down, then she would be arrested for disorderly conduct. § 87(2)(b) told PO Miller to "go ahead and lock her up" and indicated that she would not change her behavior.

PO Miller then exited the RMP to arrest § 87(2)(b) who continued to yell at the officer, but § 87(2)(b) stepped between the officer and his wife and pushed his wife into their automobile. PO Miller explained to § 87(2)(b) that he now was obligated to arrest his wife, however she would only receive a criminal summons, and that § 87(2)(b) himself was now in violation of the law by attempting to prevent the arrest of his wife. PO Miller saw that PO Magnotti was now out of the RMP, however he did not observe the precise moment when his partner exited the vehicle. § 87(2)(b) told PO Miller, "You're not getting my wife! You're gonna have to go through me!"

PO Miller attempted to turn § 87(2)(b) around to place his hands behind his back, however § 87(2)(b) resisted and a struggle ensued. PO Miller indicated that he did not have his handcuffs or firearm removed during or prior to the struggle with § 87(2)(b). § 87(2)(b) pushed away from the officer and PO Miller grabbed onto him, continuing to attempt to bring § 87(2)(b) arms behind his back. PO Miller stated, "I couldn't tell you how it happened, but some time during the struggle, he managed to get my right ring finger into his mouth, bite down on it, and I don't even know how I managed to get it out. When I did, there was blood everywhere. I doubled over in pain." PO Miller, who was in a state of shock, exclaimed that § 87(2)(b) had bitten his finger and dropped to his knee in pain.

PO Magnotti began to make radio transmission requesting assistance. Two other officers who

were down the street handling another job, along with other officers who heard the radio call, effected the arrests of § 87(2)(b) and § 87(2)(b). PO Smimmo approached PO Miller at some point in time and told him to get into PO Smimmo's RMP. PO Smimmo and his partner then drove PO Miller to the hospital. At the hospital, PO Miller was treated for his injury.

PO Miller returned to the 62nd Precinct station house for administrative duties at approximately 7:30 PM. PO Miller observed the two prisoners in the arrest processing room as he walked by, however he had no verbal or physical contact with them. PO Miller observed both § 87(2)(b) and his wife to be in normal physical condition.

PO Magnotti was interviewed at CCRB on August 4, 1998 and provided the following account of the incident. *See enclosures 28a-28c for statement.* On December 14, 1998 PO Magnotti and his partner, PO Miller, received a radio call of a motor vehicle accident at 19th Avenue and 65th Street at approximately 6:00 PM. Upon arrival at the location, PO Magnotti observed two couples — § 87(2)(b) and § 87(2)(b) and an Asian male and female — and two damaged vehicles, which were still in the street. PO Magnotti and his partner instructed both parties to move their vehicles and then obtained information from them regarding the previous events. The officers then returned to their RMP to fill out the accident report.

§ 87(2)(b) approached the RMP and banged on the window, indicating that she wanted to speak with the officers. PO Magnotti believed that he and his partner told § 87(2)(b) that they would speak to her and the other motorist after completing the report. § 87(2)(b) then approached the Asian man and instigated an argument. § 87(2)(b) then began to use profanity and racial epithets directed towards the Asian man and his female companion and approximately ten passerbys began to gather. After approximately five minutes, PO Magnotti and PO Miller exited the RMP and told the civilians to separate and wait for their copy of the accident report, explaining that they could take up the outcome of the accident with their respective insurance companies. The officers explained to § 87(2)(b) that if she continued to argue she would be in violation of the law and then returned to their patrol car.

§ 87(2)(b) continued to yell and argue with the other couple. Approximately three to four minutes later, PO Magnotti and PO Miller again exited their RMP and approached § 87(2)(b). The officers explained to § 87(2)(b) that she had previously been instructed to cease her actions, which she did not, and was now in violation of the law and would be arrested. § 87(2)(b) then stepped between his wife and the officers, took hold of § 87(2)(b) opened the door of their car and pushed her inside the vehicle. § 87(2)(b) immediately pushed PO Miller with both hands in the chest and told him, "You're not taking my wife!" PO Miller explained to § 87(2)(b) that he too was now in violation of the law and would be arrested. PO Magnotti was unsure of the subsequent events. The next thing he remembered was Mr. Goldstein biting PO Miller's hand. PO Magnotti stated that not too much time elapsed between § 87(2)(b) pushing and then biting PO Miller. Neither officer removed either their firearm or handcuffs. After PO Miller was bitten, he continued to attempt to place § 87(2)(b) in handcuffs.

PO Magnotti requested assistance over the radio and § 87(2)(b) exited her auto. PO Magnotti then attempted to place § 87(2)(b) in handcuffs, while PO Miller continued to struggle with § 87(2)(b). § 87(2)(b) resisted by swinging her arms, kicking her legs, and pushing against PO Magnotti. PO Magnotti was, however, able to overcome her resistance and successfully handcuff her. PO Zito and PO D'Amodio then responded to the scene and assisted in handcuffing § 87(2)(b) who continued to resist against the officer by kicking and pushing them.

A sergeant and many other officers responded to the location and the two prisoners were transported to the station house. PO Magnotti drove the RMP to the hospital to accompany his partner, who had been previously transported there in an ambulance. After PO Miller was treated, PO Magnotti

drove him back to the station house. PO Magnotti observed § 87(2)(b) and § 87(2)(b) in the holding cells, however he had no interaction with them. PO Magnotti observed their physical condition to be good.

PO D'Amodio was interviewed at CCRB on July 22, 1998 and provided the following account of the incident. *See enclosures 12a-12b for statement.* On December 14, 1997 PO D'Amodio and his partner, PO Zito, were assigned to the past job vehicle for the 62nd Precinct. At approximately 5:30 PM, PO D'Amodio and his partner responded to a past family dispute at § 87(2)(b). Upon arrival, PO D'Amodio did not observe any police vehicles in the area. When PO D'Amodio and PO Zito finished this job and exited the residence, PO D'Amodio heard a disturbance from down the street. When PO D'Amodio looked down the street, he saw approximately four civilians and two RMPs. Two of these civilians were "jumping on top" of one of the two officers.

PO D'Amodio and his partner ran down the street to assist the officers they now recognized as PO Miller and PO Magnotti. When they were approximately ten feet away, PO D'Amodio heard PO Miller yell, "He bit me, he bit me!" PO Miller was bleeding heavily from his right hand and struggling to handcuff both a male and a female, while PO Magnotti called for assistance and an ambulance over the radio. PO D'Amodio and PO Zito approached the male and placed him in handcuffs. The male resisted by not being compliant in placing his arms behind his back. PO D'Amodio and PO Zito then spoke with the female, telling her to calm down, and she then was compliant in being handcuffed. PO D'Amodio observed no injuries on either arrestee at this time.

Numerous officers then responded to the location. PO D'Amodio and his partner were instructed to transport the female prisoner to the station house. PO D'Amodio estimated that this trip lasted approximately ten minutes. When PO D'Amodio and PO Zito presented the female prisoner at the desk, PO D'Amodio observed that the male was present there as well and was in good physical condition.

PO Zito was interviewed at CCRB on September 9, 1998 and provided the following account of the incident. *See enclosures 35a-35b.* On December 14, 1998 at approximately 5:33 PM, PO Zito and his partner, PO D'Amodio, were assigned to a past dispute involving a firearm at § 87(2)(b). PO Zito and PO D'Amodio responded to this location and began taking a report when they heard a call for assistance at the intersection of 19th Avenue and 65th Street. PO Zito and his partner went outside and ran down the block to the location of the call. Upon arrival, PO Zito observed PO Miller struggling to handcuff a male. PO Zito assisted PO Miller in placing the male in handcuffs by bringing the male's arms behind his back. PO Zito stated that no force was used to effect the arrest and that he did not observe any injured party on the scene. By the time the male was handcuffed there were numerous units on the scene. PO Zito was unsure as to whether his partner and he resumed patrol or went to the station house. PO Zito did not recall transporting a female prisoner to the station house.

PO DiCecco was interviewed at CCRB on July 22, 1998 and provided the following account of the incident. *See enclosure 15a-15b for statement.* On December 14, 1997 PO DiCecco and his partner, PO Karnaby, were assigned to patrol sectors AB in the 62nd Precinct. At some point during their tour, PO DiCecco and his partner heard a radio call for assistance. PO DiCecco and PO Karnaby responded to this location, but when they arrived, most officers were already leaving the scene. PO DiCecco observed one male prisoner inside of an RMP. PO DiCecco exited the RMP and was informed of what had previously transpired. PO DiCecco observed PO Miller still at the scene and bleeding heavily from one of his hands. PO DiCecco and PO Karnaby remained at the scene for approximately five minutes and then escorted the officers transporting the male prisoner to ensure that everything went smoothly, as the prisoner had already demonstrated a capacity for violence. Upon arrival at the station house, PO DiCecco and PO Karnaby entered the station house, saw that everything was under control, and then resumed patrol or went to meal. PO DiCecco observed that the male prisoner was in normal physical condition when he was presented at the desk. PO DiCecco had no type of interaction with the male prisoner at any time and

did not observe a female prisoner.

PO Karnaby was interviewed at CCRB on July 22, 1998 and provided essentially the same account of the incident. *See enclosures 18a-18b for statement.*

PO Smimmo was interviewed at CCRB on July 27, 1998 and provided the following account of the incident. *See enclosures 23a-23b.* On December 14, 1997 PO Smimmo and his partner, PO Tumminello, were assigned to patrol sectors EF. At some point during the tour, an unknown officer called for assistance at 19th Avenue and 65th Street. PO Smimmo and his partner responded to this location. As soon as PO Smimmo exited his RMP, he observed PO Miller bleeding heavily from his right ring finger. PO Smimmo grabbed PO Miller and placed him into the back of his RMP. PO Smimmo informed the sergeant that he and his partner were transporting the injured officer and they then drove to the hospital. PO Smimmo stated that he and his partner were at the scene for no more than thirty seconds and had no interaction with any parties other than PO Miller and the sergeant. At approximately 6:50 PM, PO Smimmo and PO Tumminello returned to the station house. PO Smimmo had no contact with either prisoner while he and his partner were at the station house. At approximately 7:15 PM, PO Smimmo and PO Tumminello were assigned to another job.

PO Tumminello was not interviewed in the course of this investigation because he is out long-term line of duty sick.

PO DiFranco was interviewed at CCRB on July 27, 1998 and provided the following account of the incident. *See enclosures 21a-21b.* On December 14, 1997 PO DiFranco was assigned as Sgt. Incontrera's operator. She and the sergeant responded to the call for assistance involving PO Miller at 19th Avenue and 65th Street. When they arrived at the intersection, PO DiFranco observed that PO Miller was already leaving the location en route to the hospital and that the two prisoners were already under arrest and in the backs of two RMPs. PO DiFranco was not in a position to observe the physical condition of either prisoner at this time. After approximately five minutes, PO DiFranco and Sgt. Incontrera left the scene and traveled to the hospital. They remained at the hospital for approximately one to one and a half hours, at which time they returned to the station house to fill out paperwork. PO DiFranco did not observe either prisoner at the station house at any time.

Sgt. Incontrera was interviewed at CCRB on September 9, 1998 and provided the following account of the incident. On December 14, 1997 Sgt. Incontrera was the second patrol supervisor for the 62nd Precinct. At approximately 6:10 PM, Sgt. Incontrera and his operator were leaving the station house to travel to the scene of an RMP automobile accident, when he heard a call for assistance at 19th Avenue and 65th Street. Sgt. Incontrera and his operator responded to this location. Upon arrival, Sgt. Incontrera observed a male prisoner standing by an RMP in handcuffs. Sgt. Incontrera observed this individual to be in good physical condition. Sgt. Incontrera conferred with Sgt. Vallelong who informed him that the situation was under control and that the member of the service who had suffered a bite wound was already en route to the hospital. Two to three minutes later, at approximately 6:30 PM, Sgt. Incontrera and his operator drove to the hospital to see about the injured officer's condition. At approximately 7:15 PM, Sgt. Incontrera and his operator returned to the station house to handle administrative matters pertaining to the injured member of the service. Sgt. Incontrera did not have any contact with either the male or female prisoner during this time, as he was completing the paperwork in a room behind the desk, which is removed from the cell area. After completing the administrative duties, Sgt. Incontrera and his operator drove the injured officer to his place of residence.

Sgt. Incontrera stated that a second RMP might escort another RMP transporting a violent prisoner if there were sufficient manpower. Sgt. Incontrera stated that every situation is different and that there are no hard and fast rules.

PO Walker was interviewed at CCRB on September 15, 1998 and provided the following account

of the incident. *See enclosures 40a-40b for statement.* On December 14, 1997 PO Walker and his partner, PO Mahoney, were assigned to patrol sectors CD in the 62nd Precinct. At approximately 6:12 PM PO Walker and his partner heard a radio call for assistance at 19th Avenue and 65th Street and responded to this location. Upon arrival, PO Walker and PO Mahoney exited their RMP and observed that a male prisoner was standing by another patrol car in handcuffs. PO Walker did not observe any visible injuries on the male prisoner. Sgt. Vallelong instructed PO Walker and his partner to transport the prisoner. Either PO Walker or PO Mahoney then placed the arrestee into the rear seat of their RMP. The prisoner did not resist nor was there any conversation between the male and the officers. PO Mahoney then got into the back seat with the prisoner and PO Walker drove, as he was the vehicle operator on the day in question.

PO Walker's memo book indicated that he and his partner left the location at 6:20 PM. PO Walker did not recall whether he drove to the station house with emergency lights and siren nor did he have any indication or recollection of when they arrived at the precinct. PO Walker estimated that it would have taken five minutes to travel to the station house with lights and sirens and slightly longer without. PO Walker did not observe another RMP escort him and his partner en route to the station house. Upon arrival at the precinct, PO Walker parked the RMP on Bay 22nd Street and he and his partner removed the prisoner from the vehicle. The officers then presented the prisoner at the desk. PO Walker did not see another prisoner at the desk at this time or at the scene of arrest. PO Walker did not note any change in the physical condition of the prisoner from the time he first observed him at the scene of arrest. PO Walker stated that he did not park the RMP in any carport area or in the rear of the station house and that the only physical contact he and his partner had with the prisoner was placing him into and removing him from the RMP and escorting him to the desk inside the station house.

PO Mahoney was interviewed at CCRB on September 15, 1998 and provided essentially the same statement as PO Walker. *See enclosures 43a-43b.* § 87(2)(g). PO Mahoney mentioned that when he and his partner responded to the call for assistance, he observed a group (number unspecified) of civilians and an injured PO Miller, who was bleeding from one of his hands. Sgt. Vallelong asked PO Mahoney and his partner if they had a vehicle and when they indicated that they did, he instructed them to transport the male prisoner. PO Mahoney indicated that he was the one to place the prisoner into the rear of the RMP, as he was the recorder on the date in question. The prisoner was not physically resistant nor did he make any comments towards the officers. PO Mahoney believed that upon arrival at the station house, PO Walker parked the RMP in front of the station house, along either Bath Avenue or Bay 22nd Street. PO Mahoney reiterated that the prisoner's physical condition was good throughout the duration of his contact with the male and that no type of excessive force or disparaging remark occurred at any time.

PO Wittick was interviewed at CCRB on August 13, 1998 and provided the following account of the incident. *See enclosures 37a-37b for statement.* On December 14, 1997 PO Wittick was assigned as the LAPS (arrest processing) officer at the 62nd Precinct station house. At approximately 7:00 PM, Sgt. Incontrera approached PO Wittick in the LAPS (arrest processing) room of the station house and asked if he could assign him two arrests resultant from the incident on 19th Avenue and 65th Street — § 87(2)(b) and § 87(2)(b). PO Wittick agreed and then proceeded to obtain the necessary pedigree information from the two prisoners for the arrest paperwork. § 87(2)(b) and § 87(2)(b) were already inside of the holding cell at this time. PO Wittick observed no injuries on § 87(2)(b) at this time nor did he complaint of any. PO Wittick did not hear any officer make any type of threatening or discourteous remarks at any time.

Medical Records

§ 87(2)(b) sought medical treatment on § 87(2)(b) at § 87(2)(b). See enclosures 44a-44c. § 87(2)(b) complained of having been hit by police § 87(2)(b) prior in the back of the head with handcuffs, kneed in both the left and right legs, and slapped in the face. The medical exam indicates that there were no marks or contusions on § 87(2)(b) thighs, although he did experience mild tenderness. § 87(2)(b) was diagnosed with a head contusion, although the records do not indicate precisely where on the head the contusion was located. § 87(2)(b) was prescribed 500 milligrams of Naprosyn, a pain reliever and anti-inflammatory drug, heat, and additional treatment in an emergency room should the condition worsen.

Sgt. Magnus' investigative action report prepared on December 22, 1997 in connection with the IAB investigation of this incident describes the contents of the § 87(2)(b) for PO Miller. See enclosure 64b. § 87(2)(b), § 87(2)(a) PHL § 18(6)

This information was confirmed in PO Miller's line of duty report, which further indicated that PO Miller received a sprained wrist in addition to the laceration on his finger. See enclosure 56.

Police Records

The arrest report for § 87(2)(b) indicates that she was arrested on December 14, 1998 for § 87(2)(b) at 6:38 PM. See enclosure 45. The narrative of the arrest report relates that § 87(2)(b) was involved in a motor vehicle accident and began fighting with the other motorist and refused to be handcuffed. It is further indicated on the report that physical force was used to restrain/control/remove the prisoner. § 87(2)(b) arrest report shows that he was arrested on December 14, 1997 at 6:38 PM for § 87(2)(b). See enclosure 46. The narrative of the report indicates that § 87(2)(b) was involved in a motor vehicle accident and that he bit a police officer when the officer attempted to effect his arrest. The report finally states that physical force was used against § 87(2)(b) to overcome assault.

The complaint report (UF-61) for the arrest of § 87(2)(b) and § 87(2)(b) indicates that § 87(2)(b) and § 87(2)(b) were involved in a motor vehicle accident. See enclosure 53a-53b. § 87(2)(b) began fighting with the other motorist. When police officers attempted to place § 87(2)(b) under arrest, § 87(2)(b) began to fight with the officers, biting one officer, which caused serious physical injury to the officer. The officer was removed to § 87(2)(b).

The command log entry for the arrests of § 87(2)(b) and § 87(2)(b) indicate that they were both in normal physical condition. See enclosure 52. Officers DiCecco and Karnaby are listed as having presented § 87(2)(b) while Officers D'Amodio and Zito are listed as having presented § 87(2)(b). § 87(2)(b) name is listed first in the entry. The notation in the margin of the log shows that § 87(2)(b) was released with a Desk Appearance Ticket (DAT) at 9:35 PM.

§ 87(2)(b) arrest photographs show no sign of injury on either his face or the portion of his head visible in the profile shot. See enclosure 54.

The aided report, line of duty report and witness statement, firearms discharge and assault report, and aided report worksheet all indicate that while PO Miller attempted to place a female under arrest, a male bit PO Miller on the finger. See enclosures 55-59.

The motor vehicle accident report pertaining to this incident lists § 87(2)(b) as the registered and licensed owner and operator of the other vehicle involved in the accident with § 87(2)(b) and § 87(2)(b). See enclosure 49a. § 87(2)(b) vehicle was a 1990 Acura four door sedan, New York license

plate number § 87(2)(b) § 87(2)(b) is address of record on his license and registration is § 87(2)(b)

Sgt. Magnus' investigative action report indicates that she attempted to contact § 87(2)(b) on December 22, 1997 and that he informed her that he did not own a vehicle, but that his grandson § 87(2)(b) had an automobile registered in his name. § 87(2)(b) provided a telephone number for his grandson, but when Sgt. Magnus called this number, she spoke with a § 87(2)(b) who informed her that no one by that name lived there. *See enclosures 65b-65c.*

Sgt. Magnus' report of interview with § 87(2)(b) and § 87(2)(b) and the IAB Referral Log indicate that the investigation of this complaint was referred to CCRB based on the fact that § 87(2)(b) sustained minor injuries, required no hospitalization, and NYPD records indicated that force was used to effect the arrest. *See enclosures 3b and 5c.*

Field Trip

On July 28, 1998 a field trip was conducted to the 62nd Precinct station house in Brooklyn. *See enclosures for investigative action, diagram, and photograph.* It was observed that this time that the entrance to the station house was located at the corner of Bath Avenue and Bay 22nd Street. RMPs were parked along both of these venues. There was an alley parallel to Bay 22nd Street on the other side of the station house, which was blocked off by dumpsters. There was another alley parallel to Bath Avenue at the rear of the station house. At the time of this trip, there was an unmarked sedan-style vehicle parked in the alley behind the station house. The alley was not wide enough for this vehicle to have doors open on either side at the same time. A carport, garage area was observed on Bay 22nd Street near the back of the station house. The letters "C.O." were written in yellow paint on the sidewalk in front of the carport and an unmarked sedan style vehicle was observed to be parked inside this area.

CCRB Histories

Sgt. Vallelong has been a member of NYPD for eight years. This is the first complaint filed against him. PO Mahoney has been a member for seven years. This is the fourth complaint filed against him, one of which was conciliated, one substantiated, and one unsubstantiated. PO Miller has been a member for six years and the recipient of seven complaints. Two of these complaints were unsubstantiated, one unfounded, one exonerated/unfounded/unsubstantiated, one administratively closed, one truncated, and this complaint, which is pending. PO DiCecco has been a member of the department for five years and this is the fourth complaint filed against him. One complaint was unsubstantiated, one unfounded, and two, including this one, are pending. PO DiFranco has been a police officers for five years. This is the second complaining filed against her. The first complaint was exonerated. PO Walker has received four complaints in his four years of service with NYPD. The three prior complaints were exonerated, unsubstantiated, and unfounded. PO Karnaby has been a member of the department for three years and this is the third complaint filed against him. One complaint was unsubstantiated and one was truncated.

Conclusions and Recommendations

**ABUSE: PO Miller threatened to arrest § 87(2)(b) in violation of PG 110-01.
(Allegation A)**

Both § 87(2)(b) and § 87(2)(b) alleged that PO Miller threatened to arrest § 87(2)(b). However, they also both indicate that § 87(2)(b) was very upset and by § 87(2)(b) own account "hysterical." § 87(2)(b) also admitted during both of her interviews with IAB and CCRB that she was

yelling at the other motorist. § 87(2)(g)

Furthermore, both PO Miller and PO Magnotti indicated that PO Miller did not threaten § 87(2)(b) with arrest, but rather informed § 87(2)(b) of the consequences of her actions. PO Miller instructed § 87(2)(b) to cease or else she would be engaging in unlawful conduct and would be arrested. § 87(2)(g) It is recommended that this allegation be exonerated.

DISCOURTESY: PO Miller told § 87(2)(b) to “shut the fuck up” in violation of PG 104-01. (Allegation B)

§ 87(2)(b) reported to IAB when he called his complaint in to the Action Desk that an officer, later determined to be PO Miller, had told his wife to “shut the fuck up.” This allegation was not mentioned during § 87(2)(b) interview with IAB’s Sgt. Magnus. It was not until § 87(2)(b) was interviewed that this allegation came to surface again. § 87(2)(b) the alleged victim of this allegation, never mentioned in any of her statements that the officers at the scene of her arrest used profanity. § 87(2)(g)

It is recommended that allegation B be unfounded.

ABUSE: PO Miller threatened to arrest § 87(2)(b) in violation of PG 110-01. (Allegation C)

§ 87(2)(g) At the time PO Miller is alleged to have made this statement, § 87(2)(b) was, by his own account, actively preventing the arrest of § 87(2)(b) which is a crime. PO Miller attempted to explain to § 87(2)(b) the consequences of his actions, § 87(2)(g)

It is recommended that allegation C be exonerated.

FORCE: PO Miller pointed his firearm at § 87(2)(b) in violation of PG 104-01. (Allegation D)
DISCOURTESY: PO Miller told § 87(2)(b) to “step the fuck away” in violation of PG 104-01. (Allegation E)

§ 87(2)(b) originally stated during her interview with IAB that various officers “jumped” on her husband and that one officer pointed his firearm at § 87(2)(b) during this time. When interviewed at CCRB, § 87(2)(b) stated that PO Miller reached for § 87(2)(b) lapel and attempted to pull him out of the way, however § 87(2)(b) pulled away from the officer and broke the hold. § 87(2)(b) reported that at this time, PO Miller pointed his firearm at § 87(2)(b) with the barrel of the gun touching her husband’s forehead. PO Magnotti then placed § 87(2)(b) in handcuffs and the next time she saw her husband, he was on the ground, being hit on the back of the head by PO Miller. § 87(2)(b) made no mention of any profanity used by the any officers at the scene of arrest. § 87(2)(b) did not mention any firearm being pointed at him or any profanity directed at him when he initially reported his complaint to IAB or when he was interviewed by IAB. § 87(2)(b) testified when at CCRB that while he pleaded with the officers not to arrest his wife, PO Miller withdrew his firearm and pointed it at § 87(2)(b) head from a distance of one and a half to two feet. PO Miller then allegedly told § 87(2)(b) to “step the fuck away,” to which § 87(2)(b) responded that he would not. PO Miller then replaced his firearm and removed his handcuffs in order to place § 87(2)(b) under arrest.

PO Miller and PO Magnotti both stated that PO Miller did not remove his firearm or handcuffs at any time. PO Miller specifically stated that he did not even have time to remove his handcuffs, due to the struggle with § 87(2)(b) and subsequent injury caused by § 87(2)(b)

§ 87(2)(g) it is recommended that allegations D and E be unfounded.

FORCE: PO Miller pushed/pulled § 87(2)(b) in violation of PG 104-01. (Allegation F)

By all accounts, PO Miller repeatedly instructed § 87(2)(b) to cease his interference with the arrest of his wife. Likewise, both civilian and officer parties agree that § 87(2)(b) disregarded these instructions. § 87(2)(g)

§ 87(2)(b) PO Miller and PO Magnotti could not recall PO Miller specifically pushing or pulling § 87(2)(b) although they both described a physical struggle between the two. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that allegation F be exonerated.

FORCE: An unidentified officer pulled § 87(2)(b) from her vehicle in violation of PG 104-01. (Allegation G)

§ 87(2)(b) did not mention this allegation in her original report to CCRB. She did, however, state during her IAB interview that PO Miller's partner, PO Magnotti, pulled her from her vehicle while PO Miller attempted to arrest § 87(2)(b). § 87(2)(b) reiterated this allegation during her CCRB interview. § 87(2)(b) corroborated this during his IAB interview, however, § 87(2)(b) did not mention this allegation or indicate a subject officer during his CCRB interview.

PO Miller reported that the responding back up officers were the parties responsible for handcuffing § 87(2)(b) and § 87(2)(b). PO Miller did not observe PO Magnotti have any contact with either arrestee. PO Magnotti testified that he was unsure of the specific events leading up to the point in time when § 87(2)(b) bit PO Miller's finger. PO Magnotti did mention, however, that § 87(2)(b) exited her automobile on her own volition shortly after § 87(2)(b) bit the officer.

PO D'Amodio and PO Zito, the first back up officers to respond to the scene, stated that PO Magnotti was making radio transmission at the time of their arrival and that PO Miller was attempting to subdue both § 87(2)(b) and § 87(2)(b). § 87(2)(b) was already outside of the vehicle at this time. PO D'Amodio and PO Zito then handcuffed both § 87(2)(b) and § 87(2)(b).

§ 87(2)(g) it is recommended that this allegation be closed as MOS Unidentified.

FORCE: PO Miller repeated hit § 87(2)(b) in his head with handcuffs in violation of PG 104-

01. (Allegation H)

§ 87(2)(b) reported to CCRB in her original complaint that her husband was beaten with handcuffs, however she did not mention this allegation when interviewed by IAB. § 87(2)(b) CCRB statement reports that as she was being handcuffed, § 87(2)(b) observed PO Miller hit § 87(2)(b) in the back of his head with handcuffs while § 87(2)(b) was on the ground. § 87(2)(b) did not mention this allegation when reporting his complaint to IAB, either when calling the Action Desk or upon being interviewed by Sgt. Magnus. Yet, when § 87(2)(b) was interviewed at CCRB, he testified that after he refused to comply with the PO Miller's instructions, PO Miller walked towards him, extended his arms, reached around § 87(2)(b) and hit him five times in the back of the head with PO Miller's handcuffs.

PO Miller, PO Magnotti, PO D'Amodio, and PO Zito all stated that this allegation did not occur. All officers who had visual contact with § 87(2)(b) stated that § 87(2)(b) had no visible physical injuries during the time in which he was in police custody. The command log entry supports this, as do the arrest photos which depict no injuries on either § 87(2)(b) face or any area of his head visible in the frontal and profile photographs. § 87(2)(b) did not request medical treatment nor was any such treatment requested on his behalf. In fact, § 87(2)(b) did not seek medical treatment until § 87(2)(b) days after the alleged altercation with PO Miller, on § 87(2)(b). At this time, § 87(2)(b) complained of having been hit in the back of his head with handcuffs and was diagnosed with a head contusion, although the specific location of this injury is not noted.

§ 87(2)(g) § 87(2)(b) resisted arrest and it is indicated on his arrest report that force was used to overcome his assault.

§ 87(2)(g) PO Miller testified that he did not have time to remove his handcuffs from his utility belt prior to engaging in a physical struggle with § 87(2)(b). PO Miller's first action was to take hold of § 87(2)(b) in an attempt to turn him around to be handcuffed. At this time, the struggle began and PO Miller was occupied with grappling with § 87(2)(b) and was then subsequently injured. PO Miller needed both of his hands to be free in order to place § 87(2)(b) in the ready position for handcuffing. § 87(2)(g)

§ 87(2)(g) PO Magnotti, PO D'Amodio, and PO Zito all stated that PO Miller had nothing in his hands when attempting to apprehend § 87(2)(b).

§ 87(2)(b) Neither § 87(2)(b) nor § 87(2)(b) mentioned this allegation to IAB. Furthermore, § 87(2)(b) stated that her husband was hit with handcuffs while on the ground. § 87(2)(b) reported that he was standing at the time of the alleged assault and that PO Miller reached around behind him. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is recommended that this allegation be unfounded.

FORCE: An unidentified officer beat § 87(2)(b) in violation of PG 104-01. (Allegation I)

§ 87(2)(b) did not originally report this allegation to CCRB. She did, however, state during her IAB interview that she observed several officers "jump on her husband and hit him." When interviewed at CCRB, § 87(2)(b) testified that three unidentified officers arrived at the scene of arrest to assist PO Miller, but that she was not sure exactly where or how these officers struck § 87(2)(b). § 87(2)(b) did not mention this allegation in his report to IAB, although he did report during his IAB interview that he was hit by an officer, rolled himself in a ball on the ground, and that officers jumped on him and hit him until he was handcuffed. When interviewed at CCRB, § 87(2)(b) stated that other officers assisted PO Miller, but PO Miller was the only officer to have hit him at the scene of his arrest. When § 87(2)(b) provided additional information regarding the incident on March 5, 1998, § 87(2)(g) he stated that he did not specifically recall being hit by officers when they attempted to effect his arrest, but that this is what he was told by his wife.

§ 87(2)(g)

It is therefore recommended that this case be closed as MOS Unidentified/Unfounded.

ABUSE: SGT Vallelong asked § 87(2)(b) "Why didn't you try to bite me before? I would have put your head through the fucking windshield," in violation of PG 104-01. (Allegation J)

§ 87(2)(b) stated during his interview at CCRB that the officer who originally approached the scene of the automobile accident and left shortly thereafter later returned to the scene of arrest after § 87(2)(b) was handcuffed. § 87(2)(b) alleged that this officer made the above-listed threat of force. § 87(2)(b) did not mention this allegation when he reported his complaint to the IAB Action Desk or when he was interviewed by IAB. When § 87(2)(b) provided additional information regarding the incident on March 5, 1998, he stated that one of the many officers at the scene verbally abused him by stating, "I'll put your head through the windshield! I'll break your teeth! Try and bite me!" § 87(2)(b) did not corroborate this allegation in any of her statements, reporting that all alleged threats and discourteous remarks were made later on at the 62nd Precinct station house.

Sgt. Vallelong identified himself as the first officer at the scene of the motor vehicle accident, indicating that he is the subject of the allegation as reported by § 87(2)(b) on January 16, 1998 when he was interviewed at CCRB. Sgt. Vallelong testified that no discourteous or threatening remarks were made to either Mr. or § 87(2)(b) at any time while they were in police custody.

§ 87(2)(g)

it is recommended that this allegation be unfounded.

FORCE: PO Walker beat § 87(2)(b) in violation of PG 104-01. (Allegation K)
FORCE: PO Mahoney beat § 87(2)(b) in violation of PG 104-01. (Allegation L)

FORCE: PO DiCecco beat § 87(2)(b) in violation of PG 104-01. (Allegation M)

FORCE: PO Karnaby beat § 87(2)(b) in violation of PG 104-01. (Allegation N)

ABUSE: An unidentified officer told § 87(2)(b) "You're lucky to have children or you'd be fucking dead or it'd be worse!" in violation of PG 104-01. (Allegation O)

§ 87(2)(b) reported to IAB that while outside the precinct, he was smacked in the face, and kicked in the back, stomach, and leg by unidentified officers. When interviewed by IAB, § 87(2)(b) stated that when he was brought to the precinct, he was slapped and punched about his body in the carport alcove by four unidentified officers. In his statement provided to CCRB, § 87(2)(b) reported that as he was being transported to the station house, the transporting officers pulled over several times as if they were waiting for someone. Upon arrival at the station house, the officers pulled directly into the carport area and pulled § 87(2)(b) from the RMP. § 87(2)(b) observed six officers in the carport area. Four of these officers then allegedly kicked § 87(2)(b) repeatedly in the stomach, legs, and buttocks for a period of thirty seconds. One of the officers then allegedly slapped § 87(2)(b) in the face and made the above-listed threat.

According to this account, there were no civilian witnesses to this incident. § 87(2)(b) reported during her interview at CCRB that she observed her husband leave the scene of arrest in an RMP as she was placed into the rear section of the RMP. When § 87(2)(b) arrived at the station house, § 87(2)(b) was already present in the holding cells. § 87(2)(b) reported that she observed bruises on her husband's face at this time. § 87(2)(b) further reported that while in the holding cells, § 87(2)(b) told her that he had been beaten by officers, although not by the officers who transported him to the station house. § 87(2)(g) § 87(2)(b) account of the incident wherein § 87(2)(b) stated the transporting officers – PO Walker and PO Mahoney – were among the perpetrators of the alleged beating.

§ 87(2)(b) stated that she arrived at the station house at approximately 9:30 PM, at which time she was allowed to go back to the holding cell area. § 87(2)(b) returned to the cell area shortly thereafter, prior to leaving the station house with § 87(2)(b) § 87(2)(b) reported that she observed a large bruise on the center of § 87(2)(b) forehead at this time, although she did not see any such injury when she initially spoke with the § 87(2)(b) in the cell area. § 87(2)(g)

Furthermore, there is no injury – bruise or otherwise – shown in § 87(2)(b) arrest photos. The command log entry does not indicate any visible injuries on § 87(2)(b) person. § 87(2)(b) did not request medical treatment while in police custody or complain of the beating to any officer at the 62nd Precinct or central booking.

§ 87(2)(g) The only diagnosed injury was mild tenderness to § 87(2)(b) thighs and a head contusion. § 87(2)(g)

PO Walker and PO Mahoney both stated that they observed no physical injuries on § 87(2)(b) when they first encountered him at the scene of arrest or when they presented him at the desk inside the 62nd Precinct station house. Both officers also stated that their physical contact with § 87(2)(b) was

limited to placing him into the RMP, removing him from the vehicle, and escorting him to the desk. PO Walker and PO Mahoney both indicated that § 87(2)(b) was compliant throughout their interaction and that there was no use of force at any point in time. These officers also stated that they had no verbal interaction with § 87(2)(b) at any time.

PO Walker and PO Mahoney stated that their RMP was parked on one of the two streets in front of the station house, either Bath Avenue or Bay 22nd Street. The field trip to the station house revealed that these are the only two available locations for the parking of precinct autos. At the time of the field trip there were numerous department vehicles parked on the station house side of Bath Avenue and on both sides of Bay 22nd Street. § 87(2)(b) claimed that he was beaten inside of the carport area after the officers pulled their vehicle into that location. A carport, garage area was observed on Bay 22nd Street, towards the end of the station house. § 87(2)(g)

§ 87(2)(b) The carport does not have a door. This area is an enclosed driveway, which opens up to first the sidewalk, and then Bay 22nd Street. Both civilian and MOS passerbys have an unrestricted view into this area. At the time of the field trip, it was observed that the letters "C.O." (commanding officer) were written on the sidewalk in yellow paint directly in front of the carport area. An unmarked sedan vehicle was parked in the carport at the time of the field trip. § 87(2)(g)

§ 87(2)(b) The only semi-secluded area is the alley behind the station house, parallel to Bath Avenue. At the time of the field trip, there was an unmarked sedan automobile parked in this alley. It was observable during the field trip that this alley is too narrow to have doors on either side of the vehicle open at the same time. § 87(2)(g)

§ 87(2)(g) PO Walker and PO Mahoney both stated that they did not observe another RMP follow them to the station house nor did they specifically recall encountering officers from the scene of arrest when presenting § 87(2)(b) at the desk. However, both PO DiCecco and PO Karnaby testified that they did indeed follow the RMP transporting § 87(2)(b). In fact, PO DiCecco and PO Karnaby are listed in the command log as having presented § 87(2)(b) at the desk. Yet, both PO DiCecco and PO Karnaby explained that they too traveled to the station house to ensure the safety of their fellow officers, given that § 87(2)(b) had seriously assaulted one officer at the time of his arrest. Sgt. Incontrera reported from a supervisor's perspective that this added measure of safety could be an option if the manpower availability allowed for it. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) reported during her interview at CCRB that when § 87(2)(b) was pleading with PO Miller not to arrest his wife, he told the officer, "please, we have two children at home." According to the Goldstein's account of the incident, no officers other than PO Miller and PO Magnotti were present at this time. PO Walker and PO Mahoney reported that they did not initiate or respond to any conversation with § 87(2)(b) while transporting him to the station house. PO DiCecco and PO Karnaby stated that their interaction with § 87(2)(b) and § 87(2)(b) was limited to placing them in handcuffs at the scene of arrest and escorting the transporting officers to the station house to ensure the safety of all parties. The only officer to converse with § 87(2)(b) and § 87(2)(b) was PO Wittick, who needed to obtain pedigree information in the course of the arrest processing. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that allegations K, L, M, N, and O be unfounded.

DISCOURTESY: PO DiFranco called § 87(2)(b) a "fat whore" and asked "What kind of mother are you?" in violation of PG 104-01. (Allegation P)

ABUSE: PO DiFranco threatened to have § 87(2)(b) children taken away in violation of PG 104-01. (Allegation Q)

DISCOURTESY: PO DiFranco called § 87(2)(b) an "animal" in violation of PG 104-01. (Allegation R)

§ 87(2)(b) consistently reported that a female police officer by the name of Gina make the above-listed remarks to her while she was in the station house. Although § 87(2)(b) did not specify during the original report of her complaint or during her IAB interview where she was located within the station house when these remarks were allegedly made, she did state when interviewed at CCRB that she was in the cell area at the time. § 87(2)(b) who was also in the cell area and presumably would have been able to hear these remarks, did not mention them in any of his statements.

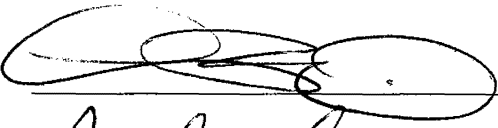
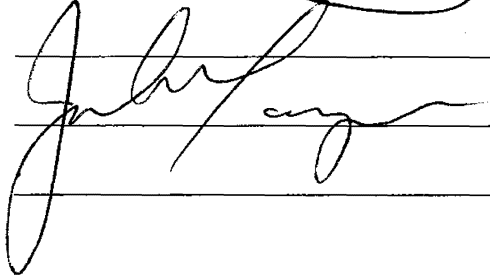
A query with the NYPD computer system showed revealed that PO DiFranco is the only member assigned to this command with the first name of Gina. PO DiFranco's statement at CCRB and the roll call for the date in question confirm that there was no other uniform or civilian member with the first name Gina working at the time in question.

PO DiFranco testified that she had no contact with either of the two prisoners at any time. PO DiFranco could not assess § 87(2)(b) or § 87(2)(b) physical condition at the scene of their arrest due to the distance between the officer and the arrestees and the short period of time that PO DiFranco and Sgt. Incontrera were at the scene. PO DiFranco further stated that she had no interaction or even visual contact with either § 87(2)(b) or § 87(2)(b) while at the station house, as she was attending to administrative duties with the sergeant. Yet, Sgt. Incontrera indicated that he and PO DiFranco were present at the station house from 7:15 PM to an unspecified time when they drove PO Miller to his place

of residence. PO Miller's memo book indicates that he ended his tour of duty at 9:00 PM. The command log shows that § 87(2)(b) was present in the station house until 9:35 PM when she was given a DAT and released. This leaves a total of one hour and forty-five minutes when both PO DiFranco and § 87(2)(b) were present in the station house.

PO DiFranco stated that she was occupied with administrative duties. However, Sgt. Incontrera testified that he was in a room behind the desk completing paperwork pertinent to PO Miller's injury. While line of duty and other related reports do need a section to be filled out and signed by a supervisor, there is no need for a police officer to fill these forms out, unless they were the injured party or a witness. PO DiFranco was neither. § 87(2)(g)

§ 87(2)(g) It is recommended that allegation P, Q, and R be unsubstantiated.

Investigator:		Date:	9/30/98
Supervisor:		Date:	
Reviewed by:		Date:	9/30/98
Reviewed by:		Date:	